

State and national." Id. at 388. In the NVRA, Congress made its own rules, and those rules "alter" any inconsistent state rules on the subject. See ACORN v. Edgar, 56 F.3d at 795. And, in keeping with this Court's understanding of the Elections Clause, Congress required the States to administer those rules.

The NVRA is not only consistent with this Court's understanding of the Elections Clause but also with historical practice. Each time Congress has regulated federal elections, it has compelled the States to implement those regulations. For example, since 1871 Congress has required that all elections for Members of Congress be tabulated by written or printed ballot. See 2 U.S.C. 9. And since 1872 Congress has established a uniform, nationwide date on which States must hold elections for federal office. See 2 U.S.C. 7; 3 U.S.C. 1. Those enactments have required States to develop and implement procedures for tabulating, securing, and printing ballots, and to provide for polling places on the federally mandated election date. They have also put States to the choice of either electing state officials by ballot on the federal election date or incurring the additional expense and effort of administering separate processes for state and federal elections. The constitutionality of such federally mandated burdens is firmly established. Ex parte Yarbrough, 110 U.S. 651, 661 (1884); Siebold, 100 U.S. (10 Otto) at 384. This Court has also upheld the federal requirement that States establish a mechanism for accepting absentee ballots in presidential elections. Oregon v. Mitchell, 400 U.S. 112, 118-119 (1970) (opinion of Black, J.) (upholding 42

U.S.C. 1973aa-1(d)).

Petitioners suggest that the Elections Clause "was solely designed to allow Congress to regulate federal elections in 'extraordinary circumstances' to prevent the States from refusing to conduct federal elections." Pet. 26 (quoting The Federalist No. 59, at 363 (Alexander Hamilton) (Clinton Rossiter ed., 1961)); see also Washington Legal Foundation et al. Amicus Br. (WLF Br.) 11-13; Pacific Legal Foundation Amicus Br. (PLF Br.) 11-13. One important purpose of the Clause was, indeed, to prevent States from destroying the Union by refusing to hold elections for federal office. See The Federalist No. 59, at 363. But the court of appeals correctly determined that the Clause was not limited to that purpose. Pet. App. 7-8 & nn.3-4.

As the Seventh Circuit observed in ACORN v. Edgar, the Elections Clause "is broadly worded and has been broadly interpreted." 56 F.3d at 794. The Clause authorizes Congress to exercise its supervisory authority over federal election procedures "at any time," U.S. Const. Art. I, § 4, not just when necessary to preserve the Union. See Siebold, 100 U.S. (10 Otto) at 392 (Elections Clause power may be exercised "whenever Congress deems it expedient to interfere merely to alter or add to existing regulations of the State"); see also Smiley, 285 U.S. at 366-367. As the Seventh Circuit noted (ACORN v. Edgar, 56 F.3d at 794), "[o]ne of the unquestioned regulations enacted under the authority of Article I section 4 is the fixing of a uniform date for federal elections" -- a regulation that can hardly be said to be necessary for the

preservation of the Union. The NVRA is a valid exercise of Congress's "coordination function." U.S. Term Limits, 115 S. Ct. at 1898 (Thomas, J., dissenting).

2. Relying on New York v. United States, 505 U.S. 144 (1992), petitioners contend (Pet. 18-23) that the NVRA violates the Tenth Amendment by requiring state officials to implement its provisions. See also WLF Br. 7-9; PLF Br. 16-20. The court of appeals, like all other courts to consider the issue, correctly rejected that contention. Pet. App. 8-9.

In New York, this Court held that the "take title" provision of the Low-Level Radioactive Waste Policy Amendments Act of 1985, Pub. L. No. 99-240, 99 Stat. 1842, violated the Tenth Amendment. That provision was enacted pursuant to Congress's Commerce Clause power, and it required States either to enact regulations providing for the disposal of all low-level radioactive waste generated within their borders or to take title to and possession of that waste by January 1, 1996. This Court held that the provision violated the principle that "Congress may not simply 'commandee[r] the legislative processes of the States by directly compelling them to enact and enforce a federal regulatory program.'" New York, 505 U.S. at 161 (quoting Hodel v. Virginia Surface Mining & Reclamation Ass'n, 452 U.S. 264, 288 (1981)). The Court explained that "[t]he allocation of power contained in the Commerce Clause, for example, authorizes Congress to regulate interstate commerce directly; it does not authorize Congress to regulate state governments' regulation of interstate commerce." New York, 505 U.S. at 166.

The Tenth Amendment principles enunciated in New York are inapposite here. The Tenth Amendment provides (U.S. Const. Amend. X):

The powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.

The Tenth Amendment reserves to the States only "the original powers of sovereignty" that they possessed before adoption of the Constitution. U.S. Term Limits, 115 S. Ct. at 1854. The power to regulate the "Times, Places and Manner" of holding elections for Congress and the presidency, however, "exclusively spr[ang] out of the existence of the national government." Ibid. That power, moreover, is expressly "delegated to the United States" (U.S. Const. Amend X) by the Elections Clause. It is therefore not a "power[]" reserved to the States by the Tenth Amendment.⁵

The textual allocation to the States of the authority and obligation to administer the federal election machinery reflects the Framers' recognition that "manifest convenience requires" leaving to the States the general responsibility for conducting elections for federal office. Siebold, 100 U.S. (10 Otto) at 383. But the Framers also recognized the strong federal interest in regulating the conduct of federal elections. See Wesberry v. Sanders, 376 U.S. 1, 42 (1964) (Harlan, J., dissenting). Thus,

⁵ Even if the Tenth Amendment did limit Congress's exercise of its Elections Clause authority, the NVRA would fall within those limits. Unlike the situation in New York, in the NVRA Congress did not force States to exercise a congressional power to regulate private conduct. Cf. New York, 505 U.S. at 166. Rather, Congress exercised its long-standing authority to supervise the States' own conduct in administering elections for federal office.

they expressly required state officials to comply with congressional regulations in this area. Congress may exercise this power "at any time, and to any extent which it deems expedient." Siebold, 100 U.S. (10 Otto) at 392.

If petitioners were correct that Congress may not impose affirmative obligations on States as part of its power to "make or alter" regulations of the federal election process, Congress would be required to federalize the entire voter registration process whenever it wished to impose some uniform federal requirements on that process. Cf. WLF Br. 10. The Court has squarely rejected that argument: "We are unable to see why it necessarily follows that, if Congress makes any regulations on the subject, it must assume exclusive control of the whole subject. The Constitution does not say so." Siebold, 100 U.S. (10 Otto) at 383.⁶ While Congress has traditionally left "the general organization of the polls to the State" (ibid.), it has always retained the "supervisory and paramount" power that the Framers deemed essential to the preservation of the federal government (id. at 386). The decision in New York did not purport to change those well-established

⁶ Petitioners read (Pet. 25) Siebold as standing only for the limited proposition that Congress may attach additional penalties to voter fraud committed by state officials in federal elections. The holding of Siebold is not so limited. Siebold upheld a federal statute that provided for the appointment of federal officers to supervise state officials in the registration of voters, administration of voting rolls, and staffing of polling places in elections for federal office. See Siebold, 100 U.S. (10 Otto) at 379-382. The Court held that Congress may subject state officials to this kind of federal supervision because, in the area of federal elections, state officials owe duties to the United States as well as the State. Id. at 388.

principles.

3. Despite Congress's broad power to regulate federal elections, petitioners contend that the NVRA violates principles of federalism because it requires employees of the state Department of Motor Vehicles and public assistance agencies "to perform federal registration duties wholly outside their usual line of work." Pet. 22 (internal quotation marks omitted). That contention is factually incorrect. Under the Act, it is the "appropriate State election official" -- as designated by state law -- who registers voters, determines eligibility, and maintains the voter rolls. 42 U.S.C. 1973gg-3(e), 1973gg-5(d); see also H.R. Rep. No. 9, 103d Cong., 1st Sess. 8 (1993). The Act imposes only narrow, routine duties on employees at other state agencies: They must include voter registration forms with the driver's license or social service applications they already distribute, see 42 U.S.C. 1973gg-3(c), 1973gg-5(a)(6) (Supp. V 1993); they must provide assistance in filling out the forms when asked, see 42 U.S.C. 1973gg-5(a)(6)(C) (Supp. V 1993); and they must forward the completed forms to the "appropriate State election official," 42 U.S.C. 1973gg-3(e), 1973gg-5(d) (Supp. V 1993). None of those duties is alien to the affected employees' "usual line of work." They must, in all events, distribute forms (for driver's licenses or other state benefits or services) and forward them for processing; at most, the Act adds an additional form to the package.

Those minimal additional duties are closely related to Congress's power under the Elections Clause to adopt uniform

procedures for electing federal officials. See ACORN v. Edgar, 56 F.3d at 796 (noting that Congress might exceed its authority under the Elections Clause if it sought to use that power "to destroy state government, perhaps by constituting all employees of the state full-time federal voting registrars," but that the NVRA does not impermissibly interfere with state prerogatives). When it enacted the NVRA, Congress acted against a backdrop of voter registration procedures that varied widely from State to State. For example, only 27 States offered registration by mail. See S. Rep. No. 6, 103d Cong., 1st Sess. 12 (1993). Twenty-two States permitted voter registration at motor vehicles offices, but the programs were implemented in different ways. See id. at 7-10. State laws allowing voter registration at other state agencies were also inconsistent. See id. at 15. Congress decided to make these procedures uniform, and it decided to do so in a way that afforded broad opportunities to register to vote. See U.S. Term Limits, 115 S. Ct. at 1858-1859, 1864 (noting that constitutional provisions governing federal elections aim at promoting uniformity). It therefore endorsed the procedures adopted by States that afforded such broad opportunities, and adopted those procedures as national rules. Doing so requires some employees in some States to assume obligations not imposed under current state practice; that, however, is a necessary concomitant of Congress's "coordination function" under the Elections Clause. Id. at 1898 (Thomas, J., dissenting).

The present cases entail only a facial challenge to the NVRA.

Pet. App. 4. The court of appeals recognized that future applications of the Act might raise constitutional issues distinct from those presented here. Id. at 4, 11. The court also recognized that the prospect of such issues arising "dictate[s] that implementation of the Act be done sensitively." Id. at 9; accord ACORN v. Edgar, 56 F.3d at 798 (implementation of NVRA must "exhibit an adequate sensitivity to the principle of federalism"). Accordingly, the court of appeals specifically directed the district court on remand to act "with an informed understanding of the duality of sovereignty imbedded within the Constitution of the United States." Pet. App. 11. In addition, the panel retained jurisdiction over any later appeals involving implementation. Id. at 12. In light of those actions, petitioners' claim that implementation of the Act will encroach on state prerogatives does not justify further review by this Court at this time. See Watson v. Buck, 313 U.S. 387, 402 (1941) ("Passing upon the possible significance of the manifold provisions of a broad statute in advance of efforts to apply the separate provisions is analogous to rendering an advisory opinion upon a statute or a declaratory judgment upon a hypothetical case.").

4. Petitioners also urge this Court to grant certiorari to consider whether the NVRA is a valid exercise of Congress's power to enforce the Fourteenth and Fifteenth Amendments. Pet. 27-29. While Congress's enforcement power under those Amendments provides an alternative ground for upholding the judgment below, that issue was not decided by the court of appeals. In any event, the Act is

a proper means of enforcing the Fourteenth and Fifteenth Amendments.

The enforcement provisions of the Fourteenth and Fifteenth Amendments authorize Congress to "use any rational means to effectuate the constitutional prohibition of racial discrimination in voting." South Carolina v. Katzenbach, 383 U.S. 301, 324 (1966); accord Katzenbach v. Morgan, 384 U.S. 641, 651 (1966). In the exercise of that authority, Congress may adopt uniform, nationwide rules targeting practices with a discriminatory effect. See Oregon v. Mitchell, 400 U.S. at 132-133 (opinion of Black, J.) (upholding nationwide ban on literacy tests); id. at 216 (opinion of Harlan, J.) (same); id. at 283-284 (opinion of Stewart, J.) (same); see also City of Rome v. United States, 446 U.S. 156 (1980) (Congress may take action against practices that are discriminatory in effect, even if they lack a discriminatory purpose).

Under that principle, the NVRA is well within Congress's enforcement authority. Congress enacted the NVRA after nearly 30 years of experience with the Voting Rights Act and a decade of investigating voter registration procedures. See, e.g., Staff of Subcomm. on Civil and Constitutional Rights of the House Comm. on the Judiciary, 98th Cong., 2d Sess., After the Voting Rights Act: Registration Barriers (Comm. Print 1984) (H.R. Ser. No. 18). That experience revealed that voter-registration requirements have sometimes been administered in a way designed to deprive minorities of their right to vote. See, e.g., S. Rep. No. 6, supra, at 3, 18; H.R. Ser. No. 18, supra, at 2-5. Congress also considered evidence

that existing registration practices have had discriminatory effects. See, e.g., S. Rep. No. 6, supra, at 17-18. The NVRA responds to those problems by enacting uniform, nationwide procedures that tend to prevent discriminatory administration of registration laws and make it easier to register. Such uniform rules can be an effective way to enforce the Fourteenth and Fifteenth Amendments. See Oregon v. Mitchell, 400 U.S. at 283-284 (opinion of Stewart, J.).

CONCLUSION

The petition for a writ of certiorari should be denied.

Respectfully submitted.

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